

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 202103268	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/29/2021 9:04 PM	Location of Incident: West 116th Street and Morningside Avenue	Precinct:	18 Mo. SOL 11/29/2022	EO SOL 11/29/2022	
Date/Time CV Reported Sun, 05/30/2021 5:12 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/30/2021 5:12 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Debbie Jimenez	00522	959954	PSA 5
2. POM Emanuel Crespo	16149	957496	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez stopped § 87(2)(b)	
B.POM Emanuel Crespo	Abuse: Police Officer Emanuel Crespo stopped § 87(2)(b)	
C.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez conducted a sexually motivated frisk of § 87(2)(b)	
D.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez forcibly touched § 87(2)(b)	
E.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez frisked § 87(2)(b)	
F.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez searched § 87(2)(b)	
G.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez refused to provide her name to § 87(2)(b)	
H.POF Debbie Jimenez	Abuse: Police Officer Debbie Jimenez failed to provide § 87(2)(b) with a business card.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On May 30, 2021, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On May 29, 2021, § 87(2)(b) was walking south on Morningside Avenue near West 116th Street in Manhattan. PO Debbie Jimenez and PO Emanuel Crespo of Police Service Area 5 were driving nearby. PO Crespo stopped the car and PO Jimenez got out. She and PO Crespo decided to stop § 87(2)(b) (**Allegation A: Stop: § 87(2)(g)**; **Allegation B: Abuse of Authority: § 87(2)(g)**) allegedly grabbed § 87(2)(b)'s thighs and genitals (**Allegations C and D: Abuse of Authority: § 87(2)(g)**) and frisked § 87(2)(b)'s waistband (**Allegation E: Abuse of Authority: § 87(2)(g)**). She also allegedly searched § 87(2)(b)'s pockets (**Allegation F: Abuse of Authority: § 87(2)(g)**). § 87(2)(b) asked for PO Jimenez's name, which she did not provide (**Allegation G: Abuse of Authority: § 87(2)(g)**). PO Jimenez did not provide § 87(2)(b) with a business card (**Allegation H: Abuse of Authority: § 87(2)(g)**).
§ 87(2)(g), § 87(4-b)

The investigation received a cellphone video of the incident taken by § 87(2)(b) (Board Review 01). The investigation also received five body-worn camera (BWC) videos pertaining to the robbery call that preceded this incident that do not include the information provided to PO Crespo and PO Jimenez before this stop (Board Review 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Debbie Jimenez stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Emanuel Crespo stopped § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Debbie Jimenez frisked § 87(2)(b)

It is undisputed that at the time PO Jimenez and PO Crespo first saw § 87(2)(b) he was walking southbound on Morningside Avenue, wearing a black shirt and black pants. PO Jimenez asked where he was coming from and frisked his waistband.

§ 87(2)(b)'s video shows a 32-second interaction with PO Jimenez. She leaves a gray unmarked vehicle and walks towards him, asking what he is doing and where he lives. He explains that he took his "girl" home and that he lives on § 87(2)(b). Her arms are then visible at the front of his body (Board Review 01).

The BWC provided by the NYPD shows officers interviewing a robbery victim but it does not show what, if any description of the alleged perpetrator was put over the radio (Board Reviews 02).

§ 87(2)(b) testified that he was going home from dropping off a friend near § 87(2)(b) Street and that he was wearing black sweatshirt and black sweatpants. He carried nothing besides his cellphone, a case for wireless earbuds, and his keys in his pockets. When he saw PO Jimenez get out of her car he started recording on his cellphone. She patted him around the waist. She did not mention any specific crime or say why he was patting him down (Board Review 03).

PO Jimenez testified that she heard a call come over the radio for a robbery at East 116th Street and Madison Avenue. The perpetrator was a Black male, wearing an article of black clothing. PO Jimenez did not remember if the perpetrator was alleged to have worn all black. She did not remember if the complainant in the case was anonymous or if there were a callback number (Board Review 04).

She saw § 87(2)(b) walking southbound on Morningside Avenue four to five minutes after receiving the call for the robbery, and he was the first person she saw who matched the

description of the robber. She did not remember how he was holding his hands when she first approached him. He was walking at an average pace. He did not have any bulges on his person. From the vehicle, there was nothing on his person that suggested that he was armed. PO Jimenez asked where he was coming from. At the time of her interview, she did not remember what his response was. She did not remember whether she asked him any other questions before she frisked him. She believed that she had reasonable suspicion that he was armed due to him fitting the description and the violent nature of the crime. She could not tell as she approached whether he had a weapon on him because she was standing under scaffolding at the time that she frisked him, making the scene dark. Her frisk consisted of her placing her hands over his clothing at his waist (Board Review 04).

PO Crespo also heard the call for the robbery at East 116th Street and Madison Avenue and remembered that the call included a partial description of a perpetrator: a Black male wearing at least a black shirt. He did not remember if the perpetrator was alleged to be armed or if the complainant were anonymous or not. He drove west on East 116th Street for three to four minutes before he and PO Jimenez encountered § 87(2)(b). They saw him and simultaneously decided to stop him. PO Crespo, who was driving, put the car in park while PO Jimenez left and initiated contact with § 87(2)(b). He did not see her frisk § 87(2)(b) as his back was turned when the interaction began (Board Review 05).

A search on Google Maps indicates that East 116th Street and Madison Avenue, the location of the initial alleged call, is approximately 0.8 mile from West 116th Street and Morningside Drive when following East and West 116th Street (Board Review 06).

People v. Moore 6 N.Y.3d 496 (2006) held that officers have reasonable suspicion to stop and frisk an allegedly armed individual on an anonymous tip if their observations corroborate the information in the tip, or if the subject's conduct suggests criminality. Fitting description solely consisting of gender, race, and clothing color does not give the officers reasonable suspicion (Board Review 07).

§ 87(2)(g) He was nearly a mile away from where the alleged robbery occurred and matched a description—Black male wearing black—that was overly general. § 87(2)(g). Nothing on his person suggested a weapon and when she observed him, he was walking at a normal pace, which did not suggest criminality. Furthermore, PO Jimenez and PO Crespo disregarded whether the limited information they had was provided by an identified source.

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Debbie Jimenez conducted a sexually motivated frisk of § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Debbie Jimenez forcibly touched § 87(2)(b).

Whether PO Jimenez touched § 87(2)(b)'s genitals is in dispute.

§ 87(2)(b)'s cellphone footage does not show exactly where PO Jimenez's hands are on his body at the time that she initiates contact with him. § 87(2)(b) can be heard saying, "bro what are you doing?" after she starts touching him. The video does not show PO Crespo in the vicinity (Board Review 01, 00:00:13-00:00:16 in the video player).

§ 87(2)(b) alleged that as soon as PO Jimenez touched him, she grabbed at his thighs and genitalia. He considered this action sexual harassment (Board Review 04).

PO Jimenez denied grabbing at § 87(2)(b)'s thighs and genitalia. PO Crespo did not see where on § 87(2)(b)'s body PO touched (Board Review 04 and Board Review 05).

As the sole video available did not show where PO Jimenez's hands were at the time that she touched him, § 87(2)(g)

§ 87(2)(g)

Allegation (F) Abuse of Authority: Police Officer Debbie Jimenez searched § 87(2)(b)

Whether PO Jimenez searched § 87(2)(b) is in dispute.

The video provided by § 87(2)(b) does not show the entirety of the physical contact that PO Jimenez has with § 87(2)(b). It does not conclusively show PO Jimenez placing her hands in § 87(2)(b)'s pockets (Board Review 01, timestamps 00:00:13 to 00:00:20 in the video player).

§ 87(2)(b) alleged that PO Jimenez placed her hands in his pockets during the interaction (Board Review 03).

PO Jimenez denied placing her hands in § 87(2)(b)'s pockets. PO Crespo could not see this part of the interaction (Board Reviews 04 and 05).

As the video did not conclusively show PO Jimenez placing her hands in § 87(2)(b)'s pockets and PO Jimenez did not testify that she did § 87(2)(g)

Allegation (G) Abuse of Authority: Police Officer Debbie Jimenez refused to provide her name to § 87(2)(b)

It is undisputed that § 87(2)(b) requested PO Jimenez's name as she walked away at the conclusion of the incident and that she did not provide it. Whether she heard the request is in dispute.

§ 87(2)(b)'s video shows him asking PO Jimenez, "What's your name?" as she walks towards her car. She does not respond. PO Crespo is not visible during this video (Board Review 01, timestamps 00:00:15 to 00:00:32 in the video player).

PO Jimenez stated during her interview that she did not hear him requesting her name. PO Crespo could not provide substantive information about this part of the incident (Board Review 04 and 05).

The New York City Administrative Code 14-174 stipulates that officers who conduct street stops in the absence of a summons or arrest must provide their names to the people they stop (Board Review 08).

Though PO Jimenez testified that she did not hear § 87(2)(b) requesting her name, administrative guide would have required her to provide her name regardless of whether he requested it. She did not make any attempt to provide her name to § 87(2)(b) despite stopping and frisking him.

§ 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Debbie Jimenez failed to provide § 87(2)(b) with a business card.

It is undisputed that PO Jimenez did not give § 87(2)(b) a business card at the conclusion of the encounter.

§ 87(2)(b)'s video shows her leaving the scene without providing a business card to § 87(2)(b) (Board Review 01, timestamps 00:00:20-00:00:32 in the video player).

PO Jimenez testified that she knew that she was required to provide a business card to § 87(2)(b) but she neglected to do so (Board Review 04).

The New York City Administrative Code 14-174 requires officers to provide business cards

to individuals they stop and frisk but do not summons or arrest (Board Review 08).

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 12).
- PO Jimenez has been a member of service for five years and has been a subject in one prior CCRB complaint, 202101454, which is pending investigation.
- PO Crespo has been a member of service for six years and has been a subject in six prior CCRB complaints, with eight allegations, none of which have been substantiated.

○ § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On July 30, 2021, a request for a Notice of Claim was submitted to the New York City Office of the Comptroller. The results will be added to the case file upon receipt (Board Review 13).

• § 87(2)(b)

Squad: 11

Investigator: Miriam Lynch SI Miriam Lynch 09/24/2021

	Signature	Print Title & Name	Date
Squad Leader:	<u>Edwin Pena</u> Signature	<u>IM Edwin Pena</u> Print Title & Name	<u>09/27/2021</u> Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date